

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 27, 2026 TIME: 8:30 A.M.

litigants.’ [Citation.] Prejudice to the court or its calendar are also relevant considerations. [Citations.] [¶] A trial court’s discretionary decision to grant or deny relief under section 631, subdivision (g) will not be disturbed absent an abuse of discretion. [Citation.]”

(*TriCoast Builder, Inc. v. Fonnegra* (2022) 74 Cal.App.5th 239, 245.)

Despite proper service, defendant did not file any opposition establishing it would be prejudiced if relief were granted. Lack of an opposition may also be considered a concession that the motion is meritorious. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Therefore, the court grants the motion and plaintiff is ordered to post jury fees no later than September 4, 2026.

No. 23CV02345

SANTA CRUZ COUNTY REGIONAL TRANSPORTATION COMMISSION v. TROUT GULCH, et al.

BETTY 41st, LLC’S MOTION TO ENFORCE DISCOVERY ORDER AND FOR MONETARY AND ISSUE SANCTIONS

Betty 41st, LLC previously brought a motion to compel further production of certain document production requests: nos. 27, 28, and 34. (MPA at p. 9.) Originally, the RTC responded to the document production request with objections and an invitation to meet and confer regarding “the scope” of the request. The RTC also represented that it was “in the process of performing a diligent search and reasonable inquiry in an effort to comply” with the request, and that it would “produce any potentially responsive documents.” In a supplemental response, the RTC indicated that it would produce a privilege log, which it did produce on June 2, 2026.

The court’s June 15, 2026 order relating to the motion to compel stated, in part: “It is not clear from the moving papers, the opposition and reply what outstanding discovery issues remain. RTC states that it has complied with the requests and the motion is moot. . . . If RTC has produced all responsive documents, it needs to also serve (if it has not done so) a verified **statement of compliance** pursuant to Code of Civil Procedure section 2031.210, subdivision (a).” (Emphasis added.)

RTC served discovery verifications on June 18, 2026, executed by RTC’s executive director but did not otherwise further respond to the document production requests. However, RTC did not serve a statement of compliance, which would have included one of the following

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three options: an agreement to comply, a representation of inability to comply, or an objection. (See Code of Civ. Proc., § 2031.210, subd. (a).)

Betty 41st, LLC contends that the RTC's responses do not conform to Code of Civil Procedure sections 2031.210 - 2031.230. Betty 41st, LLC¹ seeks mandatory monetary sanctions as well as issue sanctions and for the court to rule on this motion despite the statutory discovery motion cut-off because of the impending trial date.

Here, RTC agreed to comply after raising objections. However, it never provided a statement of compliance -- i.e., a statement that RTC (1) is complying and (2) that the documents or things demanded are in the responding party's possession, custody or control (except as objections may apply). If RTC cannot comply, it is required to state that and indicate that a diligent and reasonable inquiry was made to locate the item demanded and the reason(s) why compliance is not an option. (Code of Civ. Proc. § 2031.230.)

RTC is to serve a statement of compliance in accordance with the above statutory requirements. The court declines to impose issue and monetary sanctions at this time.

No. 26CV00633

SC LABORATORIES CALIFORNIA, LLC v. SC BLOOM NETWORK, INC.

DEFENDANT SC BLOOM'S MOTION TO SET ASIDE DEFAULT

The motion is denied; defendant did not establish mistake, inadvertence, or excusable neglect.

I. BACKGROUND AND MOTION

Defendant SC Bloom Network, Inc. ("defendant" or "SC Bloom") brings this motion to set aside its default pursuant to Code of Civil Procedure section 473, subdivision (b) – mistake, inadvertence, or excusable neglect.

- February 23, 2026, plaintiff ("SC Labs") filed this case, alleging breach of contract and common counts, seeking damages in the amount of \$87,102.07.
- February 26, 2026, defendant was served with the complaint via substituted service. The documents were left with a person at the business at least 18 years of age and then the complaint was mailed to 300 Pioneer Street, Santa Cruz.
- April 17, 2026, default was entered against SC Bloom.
- June 24, 2026, the Court denied SC Bloom's ex parte application to set aside its default.